

25STLC04665 25STLC04665

County: los-angeles

Division: Civil Law and Motion

Department: 26

Hearing date: 2026-07-21

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Case Number: 25STLC04665 Hearing Date: July 21, 2026 Dept: 26

TENTATIVE RULING:

Plaintiff Laurack D. Bray's Motion for Sanctions is continued to 08/18/2026 at 10:00 am in Department 26 in the Spring Street Courthouse. By 08/04/2026, Defendant Gene Brown is to file the opposition to the instant Motion. The Court will not consider any opposition papers filed after 08/04/2026 and no other papers are to be filed regarding the instant Motion.

Analysis:

On June 17, 2025, Plaintiff Laurack D. Bray ("Plaintiff"), in propria persona, filed the Complaint in this action against Defendant Gene Brown ("Defendant"). Plaintiff then filed a First Amended Complaint on July 11, 2025. On November 17, 2025, the Court sustained Defendant's Demurrer to the First Amended Complaint as to the first, third, fourth, fifth, and sixth causes of action with leave to amend, and overruled it as to the second cause of action.

Plaintiff filed the Second Amended Complaint on December 3, 2025. On December 30, 2025, Defendant filed a "Demurrer to Plaintiff's First Amended Complaint." At the hearing on January 28, 2026, the Court ordered the Demurrer stricken on its own motion and that Defendant file and serve an answer to the Second Amended Complaint within 20 days. (Minute Order, 01/28/26.)

Defendant filed its Answer to the Second Amended Complaint on February 13, 2026. A month later, Defendant filed another Answer to the Second Amended Complaint. Plaintiff filed the instant

Motion for Sanctions on May 5, 2026, and a reply in support of the Motion on July 2, 2026. No opposition has been filed to date.

Plaintiff's

reply refers to an opposition served by Defendant with respect to this Motion. (Reply, p. 1:20-22.) However, no opposition is on file with the Court. In order to fully evaluate the merits of the instant Motion, the Court continues the hearing to give Defendant an opportunity to file the opposition.

Conclusion

Plaintiff Laurack D. Bray's Motion for Sanctions is continued to 08/18/2026 at 10:00 am in Department 26 in the Spring Street Courthouse. By 08/04/2026, Defendant Gene Brown is to file the opposition to the instant Motion. The Court will not consider any opposition papers filed after 08/04/2026 and no other papers are to be filed regarding the instant Motion.

Moving party to give notice.